

Court No. - 3

Case :- WRIT - C No. - 32685 of 2015

Petitioner :- Hemant Kumar

Respondent :- Electricity Regularity Commission And 2 Ors.

Counsel for Petitioner :- Vijay Singh Gour, Ashish Pandey

Counsel for Respondent :- Dr. S.K. Yadav

Hon'ble Krishna Murari, J.

Hon'ble Pratyush Kumar, J.

The petitioner has approached this Court challenging the order dated 17.11.2014 passed by the respondent no. 1, U.P. Electricity Regulatory Commission waiving the penalty imposed by the Electricity Consumer Grievance Redressal Forum, Kanpur dated 18.5.2013.

Facts are that the petitioner was having 150 KVA connection from rural feeder for its unit. He applied for grant of connection from industrial feeder for continuous power supply. There was some delay in grant of connection from industrial feeder, on account of which he made a complaint being complaint no. 25 of 2012 before the Electricity Consumer Redressal Forum, Kanpur. Vide order dated 18.5.2013 the Forum directed the authorities to lay down the line and grant connection from A side feeder immediately and imposed a penalty of Rs.100/- per day from 07.01.2013 till the grant of connection. When the line was not laid and connection was not granted, an application under Section 142 of the Electricity Act, 2003 was made before the respondent no. 1, U.P. Electricity Regulatory Commission alleging non-compliance of the order passed by the Electricity Consumer Grievance Redressal Forum.

The Commission vide order dated 12-05-2014 required the Electricity Ombudsman to look into the issue of penalty imposed and to submit its finding to the Commission within six weeks. The Electricity Ombudsman, after conducting the necessary inquiry, submitted the report dated 04-06-2014 to the effect that on account of serious interference by the villagers in erection of the pole and laying of the lines, the work could only be done with the help of police force and the delay which has occurred on account of the fact that adequate police force despite repeated request was not provided within time and the penalty can be waived. On the basis of the said report of the Electricity Ombudsman, the Electricity Regulatory Commission waived the penalty.

Clause 4.4(e) of the Electricity Supply Code provides that licensee shall

not be responsible if the reason for delay are on account of right of way, acquisition of land, technical feasibility and lack of transmission capacity etc. over which the licensee has no reasonable control.

The Electricity Ombudsman has submitted a report that the reason for delay was on account of right of way since there was serious objection from the villagers in erection of pole and laying of lines. It is undisputed that after the availability of the police force, connection work has been completed on 8-12-2013.

Since the delay was on account of right of way and as per clause 4.4(e) of the Code that the licensee cannot be held responsible for the delay which was beyond control, we find no illegality in the order of the U.P. Electricity Regulatory Commission.

Writ petition stands dismissed.

Order Date :- 28.5.2015

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